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IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - II, CHENNAI

CA(CAA)/10(CHE)/2022

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of Scheme of Amalgamation

SWIFT SHIPPING PRIVATE LIMITED,
A Company incorporated under the Companies Act. 1956,
having its Registered Office at
Flat No. A-1, 7th Floor, BBC Villa Complex,
Old No.65, New No.33, Prakasam Salai Broadway,
Chennai – 600 108.

... *Applicant Company-1*

Along With

SOUTH STAR SHIPPING PRIVATE LIMITED,
A Company incorporated under the Companies Act. 1956,
having its Registered Office at
Flat No. D-4, 1st Floor, BBC Villa Complex,
Old No.65, New No.33, Prakasam Salai Broadway,
Chennai – 600 108.

... *Applicant Company-2*

Order Pronounced on ***07th March 2023***

CORAM

ASHOK KUMAR BHARDWAJ, MEMBER (JUDICIAL)
SAMEER KAKAR, MEMBER (TECHNICAL)

For Applicant(s): Mr.P.N.K.Bansali, PCS

ORDER

Per: **ASHOK KUMAR BHARDWAJ, MEMBER (JUDICIAL)**

This is a joint application filed by the Applicant Companies, namely **SOUTH STAR SHIPPING PRIVATE LIMITED** (for brevity "Transferor Company-1"), **SWIFT SHIPPING PRIVATE LIMITED** (for brevity Transferor Company-2) under section 230-232 of Companies Act, 2013, and other applicable provisions of the

Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies. The said Scheme is also appended as **"Exhibit– D"** to the Application.

2. The Applicant Companies in this Company Application has sought for the following reliefs;

	EQUITY SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
TRANSFEROR COMPANY-1	**To dispense with the meeting**	NA	NA
TRANSFEROR COMPANY-2	**To dispense with the meeting**	NA	NA

3. An affidavit in support of the present Application sworn by **Mr.Baskar Venkatavarathan** on behalf both **Transferor Companies 1 & 2** in the capacity of Director/Authorized signatory. Board Resolutions dated 31.05.2021 authorizing the above person as Authorized Signatory of the respective companies are placed at pages **137-140** of the application and it is also represented that the Registered offices of both the Applicant Companies are situated within the territorial jurisdiction of the Bench of this Tribunal and falling within the purview of Registrar of Companies, Chennai.

4. The Scheme provides for the merger of **SOUTH STAR SHIPPING PRIVATE LIMITED** (Transferor Company-1), **SWIFT SHIPPING PRIVATE**

LIMITED (Transferor Company-2) with **SWIFT CARGO PRIVATE LIMITED** (TRANSFEREE COMPANY).

5. Transferor Company-1 is a Private Limited company, incorporated under the provisions of Companies Act, 1956 on 14.07.1995. The Share Capital of the Transferor Company-1 as on 28.02.2021 is as follows:

PARTICLULARS	AMOUNT IN RS.
AUTHORISED CAPITAL 50,000 equity shares of Rs.10 each	**5,00,000**
ISSUED, SUBSCRIBED AND PAID UP CAPITAL 10,000 fully paid up equity shares of Rs.10 each.	**1,00,000**

The main objects of the Transferor Company -1 are averred as to carry on the business as ship, tug, barge, container, owners, builders, characters, hirers, liners, brokers, agents, underwriters, managers, shipping agents, freight brokers, and contractors, carriers of goods and the complete details of the main objects are described in the Memorandum of Association placed along with the application.

6. The Transferor Company-2 is a Private Limited company incorporated under the provisions of Companies Act, 1956 on 01.03.1993. The Share Capital of the Transferor Company as on 28.02.2021 is as follows:

PARTICLULARS	AMOUNT IN RS.
AUTHORISED CAPITAL 10,00,000 equity shares of Rs.10 each	1,00,00,000
ISSUED, SUBSCRIBED AND PAID UP CAPITAL 6,00,000 fully paid up equity shares of Rs.10 each.	60,00,000

The main objects of the Transferor Company -2 are averred as to undertake and carry on all or any or any of the trade and business of shippers, shipowners, ship brokers, ship agents, underwriters, ship managers, tug-owners, shipping agents, loading brokers, freight brokers and the complete details of the main objects are described in the Memorandum of Association placed along with the application.

7. The Transferee Company is a Private Limited company incorporated under the provisions of Companies Act, 1956 on 06.08.1992, having its registered office at C-2, C-wing 3rd Floor, Gundecha Onclave Kherani Road, Sakhinaka, Andheri (East) Mumbai MH 400072 and not falls under the jurisdiction of this Tribunal.

8. Both the Applicant companies have filed their respective Memoranda and Articles of Association inter alia delineating their object clauses. The Applicant Companies have filed their audited Financial Statements as on 31.03.2020 along with the independent Auditors Report and the Provisional Financial Statement as on 28.02.2021.

9. The Board of Directors of the Transferor Companies 1 & 2 in meeting held on 31.05.2021, have approved the proposed Scheme as contemplated above and copies of resolutions passed thereon have been placed on record by the companies.

10. The Appointed date as specified in the Scheme is **01.04.2021,** or such other date as may be approved by this Tribunal.

11. The Statutory Auditors of both the Applicant Companies have certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013, which are placed as Exhibit-F in the application.

12. With respect to Transferor Company-1, it is submitted as under:

(i) There are 3 (Three) Equity Shareholders and list of shareholders to this effect is placed on record with the application and consents by way of Affidavits given by all the Equity Shareholders is also placed on record and has sought for dispensation of holding of meeting.

(ii) There is **NIL** Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed along with the application. Hence the necessity of Convening, holding and conducting the meeting does not arise.

(iii) There is **NIL** Unsecured Creditor and the certificate issued by the Chartered Accountant to this effect is placed along

with the application. Hence the necessity of Convening, holding and conducting the meeting does not arise.

13. With respect to Transferor Company-2, it is submitted as under:

(i) There are 3 (Three) Equity Shareholders and list of shareholders to this effect is placed on record with the application and consents by way of Affidavits given by all the Equity Shareholders is also placed on record and has sought for dispensation of holding of meeting.

(ii) There is **NIL** Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed along with the application. Hence the necessity of Convening, holding and conducting the meeting does not arise.

(iii) There is **NIL** Unsecured Creditor and the certificate issued by the Chartered Accountant to this effect is placed along with the application. Hence the necessity of Convening, holding and conducting the meeting does not arise.

14. Taking into consideration of the submissions and the documents on record this Tribunal issues the following directions: -

A) IN RELATION TRANSFEROR COMPANY-1:

(i) With respect to Equity shareholders:

Since, it is represented by Transferor Company-1 that there are 3 (Three) Equity Shareholders in the Company whose consents by way of affidavits have been obtained and are placed on record, and hence the necessity of convening and holding a meeting is ***dispensed with***.

(ii) With respect to Secured Creditors:

Since it is represented by the Transferor Company that there is **NIL** Secured Creditor in the Company, hence the necessity of Convening, holding and conducting a meeting ***does not arise***.

(iii) With respect to Unsecured Creditors:

Since it is represented by the Transferor Company that there is **NIL** Unsecured Creditor in the Company, hence the necessity of Convening, holding and conducting a meeting ***does not arise***.

B) IN RELATION TO TRANSFEROR COMPANY-II:

(i) With respect to Equity shareholders:

Since, it is represented by Transferor Company-1 that there are 3 (Three) Equity Shareholders in the Company whose consents by way of affidavits have been obtained and are placed on record, and hence the necessity of convening and holding a meeting is ***dispensed with.***

(ii) With respect to Secured Creditors:

Since it is represented by the Transferor Company that there is **NIL** Secured Creditor in the Company, hence the necessity of Convening, holding and conducting a meeting ***does not arise***.

(iii) With respect to Unsecured Creditors:

Since it is represented by the Transferor Company that there is **NIL** Unsecured Creditor in the Company, hence the necessity of Convening, holding and conducting a meeting ***does not arise***.

15. Accordingly, the Application stands **allowed** and the Applicant Companies are directed to file the Application for the Second Motion within a period of fourteen (14) days from the date of receipt of this Order.

- Sd -

SAMEER KAKAR
MEMBER (TECHNICAL)

- Sd -

ASHOK KUMAR BHARDWAJ
MEMBER (JUDICIAL)

Gopishankar.D

Order pronounced under Rule 151 of NCLT Rules 2016, by Hon'ble Technical Member Sameer Kakar on behalf of the Bench comprising of Ashok Kumar Bhardwaj, Member (Judicial) and Sameer Kakar, Member (Technical).

M. Nallachecagul
(Court-officer)